

NHS continuing healthcare (CHC) consent form to share information with family, friends and representatives

Before completing this form, read the guidance notes on the GOV.UK page [NHS continuing healthcare: consent form for sharing information](https://www.gov.uk/government/publications/nhs-continuing-healthcare-consent-form-for-sharing-information) (www.gov.uk/government/publications/nhs-continuing-healthcare-consent-form-for-sharing-information).

If the individual lacks capacity to make the decision, you need to complete parts 1 and 3. To assess capacity, first go to the mental capacity assessment (see appendix 1).

If the individual has capacity to make the decision, complete parts 2 and 3.

If the individual is deceased, do not complete this form. See the NHS page [Access to the health and care records of deceased people](https://transform.england.nhs.uk/information-governance/guidance/access-to-the-health-and-care-records-of-deceased-people/) (https://transform.england.nhs.uk/information-governance/guidance/access-to-the-health-and-care-records-of-deceased-people/) for further guidance.

Contact details of the individual

First name

Write the first name of the individual here:

Last name

Write the last name of the individual here:

Date of birth

Write the individual's date of birth here:

NHS number

Write the individual's NHS number here:

Telephone number

Write the individual's phone number here:

Permanent address

Write the individual's permanent address here:

Postcode

Write the individual's postcode here:

Contact details of the responsible professional**Name**

Write the name of the professional here:

Profession

For example, occupational therapist, physiotherapist, medical practitioner, nurse, social care worker, other care professional.

Write profession here:

Organisation

Write organisation here:

Date form completed

Write date here:

Time form completed

Write time here:

Does the individual need extra support? (Delete as appropriate)

Yes

No

If yes, what extra support is being provided to enable them to fully participate in the assessment?

For example, interpreter, communication aids, relevant information in an accessible form, consideration of time of day when their ability to understand is better, involving someone who knows them. Or enter any other extra support being provided if not listed in previous examples.

Write here:

Part 1: if the person lacks capacity to make the decision

This is determined by the responsible professional. Complete appendix 1: the mental capacity assessment.

If you are a lasting power of attorney (LPA) or court appointed deputy (CAD) with relevant powers, fill out part 1a.

If neither an LPA nor court deputy with relevant powers is available, a best interest decision is made by the responsible professional. Fill out part 1b.

Part 1a: if the person lacks capacity to make the decision and has an LPA or CAD with appropriate authority

Read the statements below carefully. You have the right to change your mind, amend or withdraw your consent at any time.

Named individual

Write name here:

Statement and consent

I consent for the health and care records of the named individual to be shared with the people listed (see appendix 2) for the purpose of supporting them with the NHS continuing healthcare process, including the checklist and assessment process, and subsequent reviews. I understand that I can withdraw or amend this consent at any time by contacting any health or social care professional involved in the care of the named individual.

Write 'yes' here:

I do not consent to any information of the named individual being shared and acknowledge that choosing not to disclose information may affect the quality of the NHS continuing healthcare process. I understand I can change this decision at any time by contacting any health or social care professional involved in the care of the named individual.

Write 'no' here:

Attorney or deputy signature

Add signature here:

Name

Write name here:

Date

Write date completed:

Time

Write time completed:

Go to part 3**Part 1b: if the person lacks capacity to make the decision and does not have a valid and applicable LPA or CAD****Record of 'best interest' decision**

Give details of who has been consulted:

Name	Relationship	Permanent address and telephone number

Complete appendix 2 'Who the information can be shared with'.

Decision

Is it in the individual's best interests for information about their health and welfare to be shared for this purpose? (Delete as appropriate)

Yes

No

Reasons for decision

Write response here:

Signature

Add signature here:

Name

Write name here:

Job title

Write job title here:

Date

Write date completed:

Time

Write time completed:

Go to part 3

Part 2: consent from individuals who have capacity to make the decision

Statement

Read this statement carefully. Or you can ask someone to read it to you. You have the right to change your mind, amend or withdraw your consent at any time.

I understand that relevant and necessary health and social care information about me may be shared with the people I have named for the purposes of the NHS continuing healthcare process, including this assessment process and subsequent reviews.

I understand that their involvement and contribution to the NHS continuing healthcare process is important and that sharing information with them may affect the quality of the process.

I understand that I can withdraw or amend this consent at any time by contacting any health or social care professional involved in my care.

Consent

I consent to the people I have named being involved in information sharing during the NHS continuing healthcare process (see appendix 2). This includes but is not limited to the checklist and assessment process, and necessary reviews.

Write 'yes' here:

I do not consent to my health and social care information being shared with any family or friends or representatives during my NHS continuing healthcare process, including the assessment process.

Write 'no' here:

I acknowledge that choosing not to share information may affect the quality of the assessment process. I understand that I can change my mind at any time by contacting any health or social care professional involved in my care.

Signature

Add signature here:

Name

Write name here:

Relationship

Write relationship here:

Date

Write date completed:

Time

Write time completed:

If the individual has capacity but is unable to read or write, the individual can give their verbal consent and/or make a mark on the consent form.

This should be encouraged, and it is good practice for the mark to be witnessed and recorded.

Part 3: declaration by responsible professional

I have explained the NHS continuing healthcare process and purpose.

I have explained that if the checklist indicates a full assessment is required, this does not mean they will necessarily be found eligible for NHS continuing healthcare. I have explained that, after a positive NHS continuing healthcare checklist, a multidisciplinary team completes a decision support tool (DST). This tool is to assess health needs and determine eligibility for NHS continuing healthcare. Where the Fast Track Pathway Tool is appropriate, I have explained its purpose and implications. I have shared the following information with the individual:

- [Public information leaflet: NHS continuing healthcare and NHS-funded nursing care](https://www.gov.uk/government/publications/nhs-continuing-healthcare-and-nhs-funded-nursing-care-public-information-leaflet) (<https://www.gov.uk/government/publications/nhs-continuing-healthcare-and-nhs-funded-nursing-care-public-information-leaflet>)
- if appropriate, the [easy read version of the National framework for NHS continuing healthcare and NHS-funded nursing care](https://www.gov.uk/government/publications/national-framework-for-nhs-continuing-healthcare-and-nhs-funded-nursing-care-easy-read) (<https://www.gov.uk/government/publications/national-framework-for-nhs-continuing-healthcare-and-nhs-funded-nursing-care-easy-read>)
- the guidance document [Giving your consent for sharing information](https://www.gov.uk/government/publications/nhs-continuing-healthcare-giving-consent-for-information-sharing) (<https://www.gov.uk/government/publications/nhs-continuing-healthcare-giving-consent-for-information-sharing>)

I have advised the individual (or their representative) of how health and social care information may be used and shared during the NHS continuing healthcare process and subsequent reviews. I have explained that their consent is normally required to share information with relevant family, friends and/or representatives, and that the involvement and contribution of family members, friends and/or representatives is usually key to a person-centred NHS continuing healthcare assessment.

I have explained that there are times when their consent is not required, such as information sharing with a number of different health and social care professionals involved in the NHS continuing healthcare process or when their information will be used for secondary purposes in patient level data sets, in an anonymised format, to help achieve better patient outcomes, better experience, and better resources in NHS continuing healthcare.

Signature

Add signature here:

Name

Write name here:

Appendix 1: mental capacity assessment

Complete the following assessment to determine if the person lacks capacity to make the decision.

Is the person able to understand the information relevant to the decision at the date and time of this assessment?

Are you satisfied that the person could understand the nature of the decision, why the decision needed to be made at the time and whether they could understand the likely effects of deciding one way or another or making no decision at all?

Write 'Yes' here:

Write 'No' here:

Explain the reasons for your answer

Explain your reasons here:

Is the person able to retain the information long enough to use it to make the decision at the date and time of this assessment?

This is long enough to complete the decision-making process, including making and communicating their decision.

Consideration should be given to the use of notebooks, photographs, videos, voice recorders, posters, or other tools to help the person record and retain the information.

Write 'Yes' here:

Write 'No' here:

Explain the reasons for your answer

Explain your reasons here:

Is the person able to use and weigh up this information as part of the decision-making process?

For example, are they able to consider the consequences and understand the benefits and risks of making the decision one way or another or making no decision at all?

Write 'Yes' here:

Write 'No' here:

Explain the reasons for your answer

Explain your reasons here:

Is the person able to communicate their decision?

This could be verbally, using sign language or by other means.

Write 'Yes' here:

Write 'No' here:

Explain how the decision was communicated or give reasons if the answer is 'no

Explain here:

If the answer to any one of the 4 above questions is 'No', answer the question below

Is the inability to understand, retain, use or weigh up or communicate the decision caused by an impairment or a disturbance in the functioning of their mind or brain?

For more information, see the [Mental Capacity Act Code of Practice](https://www.gov.uk/government/publications/mental-capacity-act-code-of-practice)
(<https://www.gov.uk/government/publications/mental-capacity-act-code-of-practice>)

Write 'Yes' here:

Write 'No' here:

Give further details

Write response here:

Does the individual have capacity to consent for information sharing with family, friends and representatives, based on the information provided above?

No - sign and complete details below, then go to part 1

Yes - sign and complete details below, then go to part 2

Signature

Add signature here:

Name

Write name here:

Job title

Write job title here:

Date

Write date completed:

Time

Write time completed:

Appendix 2: third party contact details

Confirm who the information can be shared with.

	Contact 1	Contact 2	Contact 3
Name			
Relationship			
Address			
Phone/mobile number			
Email			
Notes (for example, a request for a specific piece of information to be withheld)			